Data processing agreement

Version: 2026-11-07
Operator: Arcolabs OÜ (registry code 17587452), Sepapaja tn 6, 15551 Tallinn, Harju maakond, Estonia; hello@testee.ai
Also online at https://testee.ai/dpa

This agreement applies when a company uses testee to assess candidates. The company is the controller of its candidates' data and Arcolabs OÜ (registry code 17587452), Sepapaja tn 6, 15551 Tallinn, Harju maakond, Estonia, processes it on the company's behalf. It forms part of the terms and is accepted with them; nothing needs to be signed. testee.ai also shows this document in other languages; only this English version is binding, and where a translation differs, the English version applies.

What is processed

- Purpose: running the company's interviews: inviting candidates, timing and scoring their answers, showing the company the results and the integrity signals, sending the emails the company asks for, sending results to the tools the company connects (its applicant tracking system, Slack, and its own systems through testee's API and web hooks), keeping the results for the company, and keeping a log of what its members do with its candidates for the company's owner. For an interview the company sets to voice mode: reading the questions aloud and turning each spoken answer into text and then into the options the candidate meant, saved at once when one option is clearly named and confirmed by the candidate otherwise; voices are never analysed for tone, emotion or anything else.
- People: the candidates the company invites, who apply through its link or whom its applicant tracking system sends. The company's members aren't covered here: testee is the controller of their accounts, under its privacy policy. Nor are people who turned on Open to offers, until the company invites one: testee shows them to the company as their controller, with their consent, and the company is the controller of what it does with what it sees; once invited, they are the company's candidates under this agreement.

- Data: candidates' email addresses, their names (given by the company or its applicant tracking system, or from their sign-in) and account ids from their sign-in, their answers, how long each took, page leaves (with how long they were away), copy attempts and answers too fast to have read the question during the interview, whether their answer times and their right and wrong answers follow the questions' length and difficulty as other candidates' do (worked out when the results are read, never stored), when they confirmed before starting that they'd answer on their own, any extra time the company gives them (without a reason), and the results; in voice mode, what the microphone picks up while the candidate answers (their spoken answer, and any other voice in the room), turned into text and matched to the options in memory only, never stored by testee; the email, name and applicant tracking system id of candidates that system sends, and their result until it has gone back to that system; the emails of people the company sends a report to; a one-way hash of the email address of each candidate who stops the company's emails, and of any address that bounced for good or marked an email as spam; candidates' ratings and reports of questions, with any comment they write; the notes the company's members and its API keys write on its interviews, which may name candidates; and the company's action log of its members' actions on candidates, such as inviting them, viewing their results or removing them: who did it, when, and which candidate's invite, kept by its id, never as a copy of the candidate's email (the owner sees the email while the invite exists).
- Duration: while the company uses testee. Candidates' results are deleted 12 months after their invitation was last sent, candidates an applicant tracking system sends 12 months after they arrive, each action in the action log 12 months after it was taken, notes with their interview, ratings and reports of questions with the question or the candidate's account, and everything else when the company is deleted. The hash of an address that bounced or marked an email as spam stays until we remove it, so that it isn't emailed again. We keep no spoken answers from voice mode; OpenAI's short retention is listed below.

Our duties

- We process the data only to provide testee as the company uses it, following its instructions given through the product and these terms, unless the law requires otherwise; we tell the company if an instruction seems to break data protection law.
- Everyone who can access the data is bound to confidentiality.
- We keep the data secure: encrypted in transit and at rest, access limited to what each service needs, sign-in through Firebase (Google, LinkedIn or GitHub), signed calls between services, backups with point-in-time recovery, error reports without email addresses, and logs kept briefly.
- We help the company answer candidates' requests (access, correction, deletion, objection, review by a person) and with its impact assessments and consultations, as far as the information is ours.
- We tell the company without undue delay, and within 48 hours where we can, after becoming aware of a breach of its data, with what we know.
- At the end, the data is deleted as described above; the company can download its results before deleting its company.

- Tools the company connects (an applicant tracking system, a Slack workspace, or its own systems through testee's API and web hooks) are its own recipients, not our sub-processors: we send them data only on the company's instruction, given when its owner or admin connects them, and stop when they are disconnected. Where they are outside the EU, that transfer is the company's responsibility.
- AI apps a member connects to their own testee account (such as Claude or ChatGPT) are that member's recipients, not our sub-processors: only when a member connects one, it reads and changes the company's data that member asks it to, within their role, and the data it receives is then under that app's own terms. A connection stops when the member disconnects it or deletes their account, or after 90 days unused. The company's owners and admins decide whether its members may do this: "Allow AI apps" on the company's AI apps page, on unless they turn it off; while it's off, no AI app reads or changes the company's data. Deleting the account or a company is never done through such an app.
- Invites and reminders sent on the company's behalf include links for the candidate to stop the company's emails, or that interview's reminders. After a candidate stops the company's emails, testee doesn't email them for the company again and the company sees their invite as undelivered. The request is kept as a one-way hash of the email address until the company is deleted, also when the company erases the candidate.
- We give the company the information needed to show that this agreement is kept, and allow and contribute to audits, including inspections, by the company or an auditor it mandates, on reasonable notice, at the company's cost, and at most once a year unless a breach or a supervisory authority requires more.

Sub-processors

The company authorises these sub-processors, each bound by data protection terms at least as protective as these:

- Google Cloud (hosting, database, events; EU, Belgium) and Google Firebase (sign-in; Google LLC, United States, under the EU-US Data Privacy Framework).
- OpenAI (writing and improving questions, including checking reported questions by the reasons given, never their comments; the assistant's answers, from a member's questions and the data it reads with their access, and turning voice messages into text; in voice mode, reading questions aloud, which holds no personal data, and turning a candidate's spoken answer into text and matching it to the options, from the recording and then its text with the question and its options, never which answer is right; told not to store it; under its API terms it may keep the data for up to 30 days, only to check for abuse unless the law requires longer, and uses nothing for training; OpenAI Ireland Ltd, which transfers it to OpenAI in the United States under the European Commission's standard contractual clauses).
- Resend (emails; sent from the EU, Ireland, and stored in the United States, under the European Commission's standard contractual clauses and the EU-US Data Privacy Framework).
- Google Workspace (our email inbox: messages from companies and candidates, and requests passed on to a company; Google Ireland Ltd, mail may be stored outside the EU under the EU-US Data Privacy Framework and standard contractual clauses).

- Sentry (error reports, without email addresses; EU).
- Langfuse (records of AI calls, to monitor and improve the quality of answers: what is sent to the AI and its answers, which can include candidates' data the AI handles, such as the results the assistant reads to answer a member, and votes on the assistant's answers; in voice mode, only which options a spoken answer matched, never its words; kept 30 days; Langfuse GmbH, Germany, its EU cloud).
- Cloudflare (the "I'm not a robot" check, Turnstile, when a candidate starts through a job ad's link: their browser's signals and address, of which we keep nothing; Cloudflare, Inc., United States, under the EU-US Data Privacy Framework).
- Upstash (short-lived counters for limits, live updates, and the results of API calls, kept up to 24 hours so that a repeated call isn't run twice; EU, Belgium).

Changes and transfers

We email the company's owners and admins about a new sub-processor, or any other significant change to this agreement, at least 14 days before it applies; every earlier version stays readable on this page; a company that objects for reasonable data protection reasons can stop using testee and delete its company.

Transfers outside the EU are covered as listed above: to Google Firebase and Cloudflare under the EU-US Data Privacy Framework, to Resend and for Google Workspace's mail under the European Commission's standard contractual clauses and that Framework, and by OpenAI Ireland Ltd to OpenAI under those clauses; the company can ask for a copy of the safeguards.

For candidates' data under UK data protection law (the UK GDPR and the Data Protection Act 2018), this agreement applies in the same way, with the GDPR read as the UK GDPR and the EU as the United Kingdom. Transfers from the United Kingdom to testee in the EU need no safeguard, as UK law recognises the EU's protection as adequate. Onward transfers to the United States are covered by the UK Extension to the EU-US Data Privacy Framework (Google Firebase and Cloudflare) and by the European Commission's standard contractual clauses with the UK's International Data Transfer Addendum, issued under section 119A of the Data Protection Act 2018 (OpenAI and Resend).

US state privacy laws

Where a company is a business under the California Consumer Privacy Act (as amended by the California Privacy Rights Act) or a controller under another US state privacy law, testee is its service provider (or processor) for its candidates' personal information. testee:

- processes it only for the business purposes this agreement describes: running the company's interviews as it instructs;
- doesn't sell it or share it for cross-context behavioural advertising;
- doesn't keep, use or disclose it for any other purpose, or outside its direct business relationship with the company, and doesn't combine it with personal information from other sources, except as those laws allow (such as the combined statistics, which identify no one, that improve questions);

- complies with those laws, gives it the level of privacy protection they require, and tells the company if it can no longer meet these duties;
- lets the company take reasonable and appropriate steps to make sure it is used as those laws require, and to stop and remedy any unauthorised use;
- helps the company answer requests to know, delete or correct personal information, and binds its sub-processors to the same duties in writing.

The company's duties

- The company has a lawful basis to assess its candidates, tells them how their results are used, and answers their requests.
- A candidate who deletes their own testee account erases their answers and results with it, for every company; they disappear from the company's interview, and its credit history shows a deleted candidate.
- testee makes no decision about a candidate. The company reviews results before deciding, doesn't reject a candidate on the score alone, gives candidates who need it an accommodation such as extra time, and lets a candidate ask for a person to review their result. This applies equally to results sent to its applicant tracking system or other tools: the company doesn't set them up to reject candidates automatically.
- The company allows testee to use candidates' answers, combined and without identifying anyone, to measure and improve the quality of questions across testee.
- The questions testee generates for the company are the company's content under the terms, not candidates' personal data, so this agreement doesn't cover them: under the licence in the terms, testee may reuse them in other customers' interviews and practice, stripped of anything that identifies the company or anyone else, unless the company keeps an interview's questions out of this in its settings.
- In voice mode, the company tells candidates before they start that their spoken answers are turned into text by AI and never stored by testee; a candidate can always answer by tapping instead.
- Where the law requires it, the company carries out an impact assessment, and gives candidates the notices its jurisdiction requires.

Contact

Questions about this agreement, and notices under it: hello@testee.ai.